



**MINUTES
MEETING OF THE SUNRISE CITY COMMISSION**

Tuesday, March 11, 2014
5:00 p.m.

1. Call to Order

Mayor Ryan called the meeting to order at 5:00 p.m.

2. Roll Call

BY: City Clerk Felicia Bravo

Those found to be present were:

Mayor Michael Ryan
Deputy Mayor Neil Kerch
Assistant Deputy Mayor Lawrence Sofield
Commissioner Donald Rosen – participating telephonically
Commissioner Joseph Scuotto - arrived at 5:26 p.m.

City Manager Alan Cohen
Assistant City Manager Richard Salamon
City Attorney Kimberly Kisslan
Assistant City Attorney Tom Moss
Community Development Director Mark Lubelski
Administrative Aide Lourdes Lawrence
City Clerk Felicia Bravo

3. Invocation and Pledge of Allegiance

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4. Consent Agenda

MOTION A motion to approve Items 4A through K, with the exception of Item 4G, made by Deputy Mayor Kerch was seconded by Assistant Deputy Mayor Sofield.

Roll Call:

Commissioner Rosen	Absent
Commissioner Scuotto	Absent
Assistant Deputy Mayor Sofield	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

A) Agreement - C14064 – Resolution 12-23-14-A

A Resolution of the City of Sunrise, Florida, approving a Memorandum of Agreement between the City of Sunrise and the City of Miami for participating Miami UASI Grant 2013 Agency; authorizing the purchasing director to procure items in accordance with the terms of the approved grant award; and providing for an effective date.

B) Agreement - C14055 – Resolution 14-30

A Resolution of the City of Sunrise, Florida, approving a Criminal Justice User Agreement between the Florida Department of Law Enforcement (FDLE) and the City of Sunrise; and providing an effective date.

C) Agreement - C14067 – Resolution 14-30-14-A

A Resolution of the City of Sunrise, Florida, approving a License Plate Reader Supplement to the Criminal Justice User Agreement between the Florida department of Law Enforcement (FDLE) and the City of Sunrise; and providing an effective date.

D) Agreement - C14066 – Resolution 14-30-14-B

A Resolution of the City of Sunrise, Florida, approving a Red-Light Camera Operations Supplement to the Criminal Justice User Agreement between the Florida Department of Law Enforcement (FDLE) and the City of Sunrise; and providing an effective date.

E) Agreement - C14069 – Resolution 14-31

A Resolution of the City of Sunrise, Florida, approving a Letter of Agreement and

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contract between the City of Sunrise and the University of South Florida Board of Trustees for the University of South Florida's Center for Urban Transportation Research; and providing an effective date.

F) Agreement - C14070 – Resolution 14-32

A Resolution of the City of Sunrise, Florida, authorizing the Chief of Police to enter into Memoranda of Understanding or agreements where no funding is required; and providing an effective date.

G) Amendment - C14063 – Resolution 95-244-14-A

A Resolution of the City of Sunrise, Florida, providing for a revision to Ordinance No. 715-X, as amended, to the pay plan appendix; and providing for an effective date.

MOTION A motion to approve Item 4G made by Commissioner Scuotto was seconded by Commissioner Kerch.

Deputy Mayor Sofield said he could not support raising the rate of pay for this position. The city was offering a great package. He could not give a 10% to 11% raise to someone who had not started the job. He thought the city needed to look at the staff of the department. He thought that the qualifications may be too high. He thought that not having a traffic ticket or having a P.E. certification was too high of an expectation. Additionally, it set a bad example to the employees who have gone without raises and were in the process of collective bargaining.

Mr. Cohen responded that as a taxpayer he appreciated the ongoing efforts to restrain spending. He agreed that it appeared to be an attractive package, but in the market, it was not. There were qualified candidates that would not take the job because it was not enough. It was more of an adjustment in the pay scale to reflect the market.

Deputy Mayor Sofield asked if there was someone in the department who was qualified to hold the position, provided that the qualifications were modified.

Mr. Cohen replied there was none.

Utilities Director Tim Welch explained that many of the employees were at retirement age. Only about 3 to 5 employees were there less time.

Commissioner Scuotto commented that sometimes great employees were not great supervisors. The City was the 4th or 5th largest gas provider in the state. The City had to increase the range to get the caliber of employees it wanted and that the position

required.

Mr. Welch advised that it would be helpful to have someone in the Gas Division with the technical capabilities of a certified engineer.

Deputy Mayor Kerch agreed with succession planning and looking from within first to fill positions.

Mayor Ryan thanked Mr. Cohen for looking at the issue so thoroughly. It was a complex field and needed someone who could evolve with the growth and regulatory changes. The most qualified candidate had to be found. It was a unique position. He supported the measure.

Commissioner Rosen asked if a national search was conducted.

Mr. Cohen said it was a national search.

Commissioner Rosen replied that the regulatory compliance was paramount. He would support the issue as well.

Roll Call:

Commissioner Kerch	Yea
Commissioner Rosen	Yea
Commissioner Scuotto	Yea
Deputy Mayor Sofield	No
Mayor Ryan	Yea

H) Services - C14065 – Resolution 14-33

A Resolution of the City of Sunrise, Florida, approving the purchase of Utility Repair Services from Jackson Land Development, LLC of Pompano Beach, Florida under the terms and conditions of the City of Plantation's contract no. 081-12; and providing an effective date.

I) Chemicals - C14061 – Resolution 14-34

A Resolution of the City of Sunrise, Florida, to award bid no. 14(07)12-05-02-05-M to American Water Chemicals, Inc. of Plant City, Florida for the purchase of polyphosphates; and providing an effective date.

J) Agreement - C14073 – Resolution 14-35

A Resolution of the City of Sunrise, Florida, approving a Commercial Sales Agreement with Tyco Integrated Security, LLC (TYCO) of Boca Raton, Florida, for the purchase of two Burgess Computer Decisions, Inc. (BCD) Video Recording Servers for the Police Department; and providing an effective date.

K) Project Cardinal - C14068 – Resolution 14-36

A Resolution of the City of Sunrise, Florida, evidencing the intention of the city to provide an Economic Development Incentive to **Project Cardinal** under the Florida Qualified Targeted Industry (QTI) Incentive Program (Section 288.106, Florida Statutes) and under the City's Economic Development Incentive Authority in consideration of **Project Cardinal's** expansion in the City of Sunrise; and providing an effective date.

5. Special Items

A) Presentation

Presentation by the Spinal Cord Injury Support Group, HealthSouth, Ms. Brooke Thabit and Mr. Zoltan Polgar regarding Red Bull Wings for Life World Run. Mayor Michael J. Ryan.

Brooke Thabit came forward to share the story of her injury and ask for support of the Wings for Life Run.

Zoltan Polgar explained that the City of Sunrise was one of three North American locations and would host the North American event. The event was about raising money for spinal cord research and 100% of the proceeds would be given to Wings for Life. Approximately 150,000 people would participate globally.

Cheryl Miller, HealthSouth, explained that this research was vital, because their therapies had to be based in research and evidence.

Ryan Bauer, president of the Spinal Cord Injury Support Group, discussed his injury. The staff at HealthSouth assisted him and others with their various needs. He was able to forge new friendships through this group.

Commissioner Scuotto arrived at 5:26 p.m.

Participants could sign up at www.wingsforlife.com.

B) Presentation

Presentation by Ms. Rachel Beach, Nurse Supervisor with Nurse Family Partnership at Broward Regional Health Planning Council, Inc. Mayor Michael J. Ryan.

C) Presentation

Recognition of Speech Contest State Winner Miss Molly Ryan from Bair Middle School. Deputy Mayor Neil Kerch.

Miss Ryan presented her award –winning speech to the City Commission.

D) Presentation

Presentation of the Employee of the Month Award for March 2014 to Dreama Richland, Public Service Aide in the Police Department. John E. Brooks, Police Chief.

E) Presentation

Presentation of the Officer of the Month Award for March 2014 to Officer Christian Coello. John E. Brooks, Police Chief.

F) Presentation

Presentation of the Firefighter of the Month Award for March 2014 to Rescue Lieutenant Daniel Larsen and Driver/Operator John Sobkowski. Thomas DiBernardo, Fire Chief.

G) Presentation

Presentation of the Teacher of the Month Award for March 2014 to Nashira Scott, Village Elementary School. Beth Zickar, Leisure Services Director.

H) Proclamation

Proclamation proclaiming the Month of March 2014 as Florida Bicycle Month. Mayor Michael J. Ryan.

Mayor Ryan reminded all drivers to move over three feet from bicyclists sharing the roadways.

I) Proclamation

Proclamation proclaiming the Month of March 2014 as March for Meals Month.

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Mayor Michael J. Ryan.

J) Proclamation

Proclamation proclaiming April 1st, 2014 as National Service Recognition Day. Mayor Michael J. Ryan.

Impact Broward, the American Legion, and Step Up Sunrise came forward to be recognized and to foster support for community service programs in Sunrise.

MOTION A motion to move Item 17A up on the agenda made by Assistant Deputy Mayor Sofield was seconded by Deputy Mayor Kerch. All were in favor.

6. City Items

A) Appointment - M14002

A Motion to appoint Minal Shah, and to reappoint Chris Sammartino and Kelly Scapecchi, as members of the General Employees' Retirement Board.

MOTION A motion to approve Item 6A made by Deputy Mayor Kerch was seconded by Commissioner Scuotto.

Roll Call:

Commissioner Rosen	Yea
Commissioner Scuotto	Yea
Assistant Deputy Mayor Sofield	Yea
Deputy Mayor Kerch	Yea
Mayor Ryan	Yea

B) Proclamation - C14062

A Proclamation of the City of Sunrise, Florida, selecting a Deputy Mayor and Assistant Deputy Mayor for the period commencing March 11, 2014 in accordance with Section 2-16 of the City Code; and providing for an effective date.

7. Open Discussion

Johnnie Nelson approached the Commission to thank Police Chief John Brooks for the surveillance to stop the vehicle break-ins. There was a major problem in Phase III with bulk pick-up. There were not enough pick-ups scheduled for the population. There was

a tremendous amount of large items that were appearing curbside. It looked like a dumping ground.

Mr. Salamon said he was familiar with the issue and it was common in multi-family communities. It was up to Code Enforcement to curtail the activity.

Mr. Nelson replied he would prefer to increase the amount of pick-ups, rather than focus on enforcement. He wanted to know what the cost would be for twice-a-month and once-a-week service.

Mr. Salamon commented that the condominium by-laws usually controlled this type of behavior. Some communities paid for additional pick-ups. The franchise agreement provided for once-a-month citywide collection.

Mayor Ryan asked if staff could talk to Republic to see if it was a possibility to increase pick-ups. If that did not work, other options could be explored.

Commissioner Scuotto explained it was not that easy to have the problem resolved for one development. Others would want to expand service as well.

Danielle Dinicola, Republic Industries, said she would work with Richard Salamon and Harry Cruz to resolve the issue.

Commissioner Scuotto said it could open a door and other communities would follow suit.

Ms. Marcia Norris commented that she contacted Code Enforcement regarding a problem and it was resolved quickly.

Michael Mellion, Havana's Cafe, came forward to ask for entertainment. It was a family restaurant. The City advised that including entertainment would change the status of the business from a restaurant to a nightclub. His clientele would like to dance. He did not want to have late hours or rent his facility.

Commissioner Scuotto commented that there was a jazz place that had performers.

Mr. Lubelski replied that a code amendment was going to be proposed. It would facilitate this type of use.

Mayor Ryan asked if something would come forward at the next meeting and was told yes.

Commissioner Scuotto replied that he had the same issue in his restaurant as well. He was glad that it was going to come forward.

Mayor Ryan thanked Mr. Mellion.

Commissioner Kerch said he experienced this too in the restaurant business and hoped the situation could be resolved.

Commissioner Rosen arrived at 6:59 p.m.

Commissioner Rosen agreed that it was good to change the code with respect to this issue.

Bernard Shaw commented that he went to a restaurant where there was a singer.

8. Commission/Mayor Reports

Commissioner Rosen advised that he was in Washington, DC working on city-related issues and would give a full report upon his return.

Deputy Mayor Sofield had no report.

Commissioner Scuotto had no report.

Commissioner Kerch replied that he enjoyed being deputy mayor. He gave a brief report on the events he attended over the last two weeks. He reminded the public about the City Commission Workshop next week regarding the Leisure Services Master Plan. He thanked Police Chief John Brooks for the crime suppression. Commissioner Kerch congratulated Mayor Ryan for being named the Irishman of the Year by the Emerald Society of Fort Lauderdale.

Mayor Ryan thanked staff for the Tunes and Trucks event. There could be an opportunity next year for Sunrise businesses to participate. The number one ranked chess player in the United States, Hikaru Nakamura, would be in Sunrise at 12:00 noon with the Sunrise Chess Club. He would host an event that would begin at 3:00 p.m. The tickets would be \$25. He would drop the puck at the at the Panthers' game. Markham Park would have a bike ride event for families.

9. City Manager's Report

None

10. Consent Discussion

The City Commission returned to Item 4G for discussion.

11. Quasi-Judicial Consent Agenda

None

12. Public Hearings

A) **Amendment** - C14032 – Ordinance 402-14-G

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Chapter 16 "Land Development Code" by amending Article V "District Regulations;" Section 16-79 "Master Business List;" to change the regulations for Auto Parts Retail Stores; providing for conflict; providing for severability; providing for inclusion in the city code; and providing for an effective date. (First Reading, CCM 2/11/14 Passed 5-0.) (Second Reading, tabled on CCM 2/25/14 Passed 5-0.)

MOTION A motion to remove Item 12A from table made by Commissioner Rosen was seconded by Commissioner Scuotto. All were in favor.

MOTION A motion to approve Item 12A made by Commissioner Scuotto was seconded by Deputy Mayor Sofield.

Mayor Ryan opened the public hearing.

Anthony Bailey of Advanced Auto Parts thanked the Commission.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Kerch	Yea
Commissioner Rosen	Yea
Commissioner Scuotto	Yea
Deputy Mayor Sofield	Yea
Mayor Ryan	Yea

B) **Amendment** - C14034 – Ordinance 564-14-B

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Fiscal Year 2013/2014 Budget Ordinance No. 564, amending the General Fund (001), the Capital Projects Fund (325), and the Utilities 2010 Construction Fund (408); providing for conflict; providing for severability; and providing an effective Date. (First Reading, CCM 2/11/14 Passed 5-0.)

MOTION A motion to approve Item 12B made by Deputy Mayor Sofield was seconded by Commissioner Scuotto.

Mayor Ryan opened the public hearing. No one came forward to speak.

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Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Kerch	Yea
Commissioner Rosen	Yea
Commissioner Scuotto	Yea
Deputy Mayor Sofield	Yea
Mayor Ryan	Yea

C) Amendment - C14047 – Ordinance 782-X-14-A

re: Second Reading

An Ordinance of the City of Sunrise, Florida, amending Ordinance 782-X, as amended, by creating and revising program fees in the Leisure Services Fee Schedule; providing for conflict; providing for severability; and providing an effective date. (First Reading, CCM 2/25/14 Passed 5-0.)

MOTION A motion to approve Item 12C made by Commissioner Scuotto was seconded by Deputy Mayor Sofield.

Mayor Ryan opened the public hearing. No one came forward to speak.

Mayor Ryan closed the public hearing.

Roll Call:

Commissioner Kerch	Yea
Commissioner Rosen	Yea
Commissioner Scuotto	Yea
Deputy Mayor Sofield	Yea
Mayor Ryan	Yea

13. Quasi-Judicial Hearings

None

14. City Clerk's Report

None

15. City Attorney's Report

The City received a sureties check in the amount of \$927,000 as a result of the Tenex lawsuit.

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16. Old Business

None

17. New Business

A) Puppy Mills/Kitten Factories

Commission discussion and/or Action Re: Puppy Mills/Kitten Factories. Mayor Michael J. Ryan.

Mayor Ryan advised that he provided ordinances related to this issue in the back up materials.

Hallandale Beach City Commissioner Michele Lazarow stated she bought a dog from Puppy Palace. The store was still open and selling sick puppies. Puppy mills and kitten factories were unethical, cruel and inhumane. It was a public safety and welfare issue.

Mayor Ryan thanked Commissioner Lazarow for providing the various ordinances. He wanted to use the Town of Davie ordinance as a model.

Deputy Mayor Sofield supported the measure. He clarified that this was not meant to stop responsible hobby breeders.

Commissioner Lazarow commented that there were four categories of exemptions. The hobby breeder was limited to one litter per year and had to be license through Broward County. Shelters, rescues, and national chain stores that worked with rescues to promote adoptions were exempt, too. She adopted two dogs from the county shelter that were puppy mill dogs. They were very unhealthy.

Mayor Ryan stated that the mills were actually farms for animals. It became an emotional problem for the families.

Commissioner Lazarow said that the mills were large scale, commercial enterprises. There was inbreeding and sometimes the animals were not taken out of the cages. The animals were used until spent and then killed or auctioned. Up to 99% of the stores received their pets from mills. The mills were rarely inspected by the USDA. It was hard to link the illness back to the puppy mill when illness strikes, even with pet lemon laws.

Commissioner Scuotto said there was a man who stood outside at Flamingo and I-595 with a sandwich board encouraging customers to go to a particular pet store.

Commissioner Lazarow replied there was no legislation on the federal or state level. She was trying to encourage local ordinances. The businesses could be shutdown city-by-city. Several communities had puppy mill prohibitions.

Mayor Ryan commented that it was a big commercial enterprise.

Commissioner Scuotto replied that the states that had mills should have legislation prohibiting the activity.

Commissioner Lazarow said the growth of pet stores was enormous due to the amount of money that could be made. Stores open while the legislation was being passed.

Deputy Mayor Kerch supported the effort as well.

Mayor Ryan asked if it was the general consensus to draft an ordinance.

Commissioner Lazarow said there was a group of lobbyists in DC that would send out a letter to dissuade the Commission.

18. Adjournment

Seeing no further business, the meeting adjourned at 7:34 p.m.

Respectfully submitted by:

Felicia M. Bravo, City Clerk